



CHAPTER v.

An Act to confirm a Provisional Order under the A.D. 1937.
Private Legislation Procedure (Scotland) Act
1936 relating to Rothsay Harbour. —
[22nd December 1937.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by the
Secretary of State under the provisions of the Private 26 Geo. 5. &
Legislation Procedure (Scotland) Act 1936 and it is 1 Edw. 8.
requisite that the said Order should be confirmed by c. 52.
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule Confirmation
hereunto annexed is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Rothsay Harbour Short title.
Order Confirmation Act 1937.

A.D. 1937.

SCHEDULE.

ROTHESAY HARBOUR.

Provisional Order to authorise the Rothsay Harbour Trustees to execute certain works at the harbour to confer upon them further powers to authorise the provost magistrates and councillors of the royal burgh of Rothsay to levy a special rate in respect of Rothsay harbour and for other purposes.

30 & 31 Vict.
c. 33.

WHEREAS by the Act 1 & 2 William IV Chapter XXXIV certain Trustees were appointed to carry into effect the powers as to the harbour of Rothsay conferred upon them by the said Act and by the Rothsay Harbour Order 1867 the said Trustees were empowered to make and maintain the further works in connection with the said harbour in the said Order described :

45 & 46 Vict.
c. lviii.

And whereas by the Rothsay Harbour Order 1882 the Trustees acting under the before mentioned Act and Order were incorporated by the name of the Rothsay Harbour Trustees with perpetual succession and a common seal :

61 & 62 Vict.
c. xcvi.
8 Edw. 7.
c. cxxxvii.

And whereas by the Rothsay Harbour Order 1898 and the Rothsay Harbour Order 1908 further powers were conferred on the Rothsay Harbour Trustees (hereinafter called " the Trustees ") in reference to the harbour :

And whereas the Trustees have borrowed and expended the whole of the moneys authorised to be raised by the said Act and Orders and the indebtedness of the Trustees amounted as at the thirtieth day of September one thousand nine hundred and thirty-six to the sum of one thousand one hundred and thirteen pounds seven shillings and one penny :

And whereas the Trustees have from time to time been unable to borrow money for the purposes of their undertaking favourably without such borrowings being guaranteed by the corporation of the royal burgh of Rothsay :

A.D. 1937.

And whereas the provost magistrates and councillors of the royal burgh of Rothsay (hereinafter called "the corporation" and "the burgh" respectively) are the municipal local and sanitary authority of the burgh and the burgh and its inhabitants are largely interested in the maintenance and proper development of the facilities of the harbour :

And whereas the harbour being of vital importance to the burgh and the Trustees being unable to raise money for the purposes of their undertaking upon favourable terms without the guarantee of the corporation the corporation have resolved to guarantee the payment of principal and interest borrowed by the Trustees for the purposes of the harbour undertaking and for that purpose it is expedient that the provisions in that behalf hereinafter contained should be enacted :

And whereas it is expedient that the Trustees should be empowered to execute the works for the improvement of the harbour and the facilities thereat as hereinafter described :

And whereas plans and sections showing the lines situations and levels of the works authorised by this Order and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the sheriff clerk of the sheriffdom of Renfrew and Bute at his office in Rothsay and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas estimates have been prepared by the Trustees for the purchase of lands and for the construction of the works by this Order authorised and such estimates are as follows :—

The widening of the Front Pier into the	£
Inner Harbour - - - - -	6,490
The widening of the Front Pier into the	
Outer Harbour - - - - -	9,570
Dredging - - - - -	902

And whereas it is necessary to rebuild the present warehouses offices waiting rooms and refreshment rooms and it is desired to provide a travelling crane for the

A.D. 1937. — handling of the traffic on the pier and estimates have been prepared for this work as follows :—

New warehouses offices waiting rooms	£
and refreshment rooms	- - 15,788
Travelling crane	- - - 250
	16,038

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient that the Trustees should be authorised to borrow money for the execution of the works by this Order authorised and for the general purposes of their undertaking and for the repayment of the money borrowed under the authority of the said Act and Orders and remaining unpaid and for the other purposes of the harbour undertaking to which capital money is properly applicable :

And whereas it is expedient that some of the provisions of the said Act the Order of 1867 the Order of 1882 the Order of 1898 and the Order of 1908 should be repealed varied and amended and that the Trustees should be authorised to levy and recover revised tolls rates dues and charges as hereinafter provided :

And whereas it is expedient to make such other provisions as in this Order contained :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows :—

Short title.

1. This Order may be cited for all purposes as the *Rothsay Harbour Order 1937.*

The *Rothsay Harbour Act and Orders 1831 to 1908* and this Order may be cited together as the *Rothsay Harbour Act and Orders 1831 to 1937.*

Commence-
ment of
Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same (which date is hereinafter referred to as “the commencement of this Order”).

3. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order and shall apply to the harbour undertaking of the Trustees (namely):—

A.D. 1937.
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Incorporation of
Acts.

- (1) The Lands Clauses Acts except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking:
- (2) The Harbours Docks and Piers Clauses Act 1847 with the exception of sections 6 to 13 16 to 19 23 25 26 77 to 80 84 85 95 and 101 of that Act:

10 & 11 Vict.
c. 27.

Any reference to a vessel in the provisions of the Harbours Docks and Piers Clauses Act 1847 as applied by this subsection shall be deemed to include a reference to a seaplane when on the surface of the water and in section 28 of the said Act any reference to a vessel shall also include a floating dock and a vessel of exceptional construction or method of propulsion belonging to or employed in the service of His Majesty:

Provided that—

(i) nothing in any of the aforesaid provisions shall except in the case of a seaplane disabled by an accident authorise the harbour master to require the dismantling of a seaplane or any part thereof or the making of any alterations whatever of the structure or equipment of a seaplane; and

(ii) nothing in any of the aforesaid provisions or in any byelaw made in pursuance thereof shall prejudice any regulations for the investigation of accidents made under section 12 of the Air Navigation Act 1920 as amended by any subsequent enactment:

10 & 11
Geo. 5. c. 80.

- (3) This Order shall be deemed a special Act within the meaning of the Acts wholly or partially incorporated herewith.

A.D. 1937.

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Interpre-
tation.

4. In this Order unless there be something in the subject or context inconsistent with or repugnant to such construction—

(a) the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings; and

(b) the following words and expressions shall have the meanings assigned to them in this section (that is to say):—

“the Trustees” means the Rothsay Harbour Trustees incorporated by the Order of 1882;

“the clerk” means the clerk to the Trustees;

“the harbour” means the harbour of Rothsay as defined by the Rothsay Harbour Order 1908 including therein the works authorised by this Order;

“the harbour undertaking” means and includes the harbour and the offices works and conveniences connected therewith and the accesses from and to the same respectively and all other property and pertinents to be used or held in connection therewith and the right to levy rates duties and charges and all other powers rights authorities and privileges relating thereto conferred on or vested in the Trustees and the entire undertaking of the Trustees in connection with the harbour;

“the Harbour Act and Orders” means the Rothsay Harbour Act and Orders 1831 to 1908 and this Order;

“authorised rates” means the rates dues and duties which are for the time being authorised to be levied demanded and recovered in pursuance of the Harbour Act and Orders and “authorised rate” means any one of the said rates dues and duties;

“ the Harbours Clauses Act 1847 ” means the Harbours Docks and Piers Clauses Act 1847; A.D. 1937.
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“ the burgh ” means the royal burgh of Rothsay;

“ the corporation ” means the provost magistrates and councillors of the burgh;

“ the sheriff ” means the sheriff of Renfrew and Bute and includes his substitutes;

“ the Minister ” means the Minister of Transport;

“ vessel ” includes a seaplane on the surface of the water;

“ seaplane ” includes a flying boat and any other aircraft designed to manoeuvre on the water;

“ statutory security ” means any security in which trustees in Scotland are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money but does not include securities of the Trustees;

“ the local Act ” means 1 & 2 William IV chapter xxxiv;

“ the Order of 1867 ” means the Rothsay Harbour Order 1867;

“ the Order of 1882 ” means the Rothsay Harbour Order 1882;

“ the Order of 1898 ” means the Rothsay Harbour Order 1898;

“ the Order of 1908 ” means the Rothsay Harbour Order 1908; and

“ the works ” means the works authorised by this Order.

5. Subject to the provisions of this Order and subject also to such alterations (if any) in the plans and sections deposited with reference to this Order as the Board of Trade may require before the completion of the works in order to prevent injury to navigation the Trustees may in the lines and situations and according to the levels and within the limits of deviation shown

Power to construct works.

A.D. 1937. — on the said plans and sections make and maintain the following works (namely):—

Work A A widening to 34 feet southwards into the Inner Harbour of that portion of the Front Pier between the West Pier and the Mid Pier commencing at a point on the east side of the West Pier distant 245 feet from the south-west corner of the Inner Harbour and terminating at a point on the west side of the Mid Pier distant 38 feet northwards from the north face of the entrance to the Inner Harbour;

Work B A widening southwards into the Outer Harbour of the east arm of the Front Pier varying in width from 25 feet to 0 feet commencing at a point on the east side of the Mid Pier distant 35 feet northwards from the north face of the entrance to the Inner Harbour and terminating at the north end of the circular knuckle on the south-east corner of the Front Pier;

Work C The dredging of 6,500 cubic yards or thereby of material from the area of the Outer Harbour between the east arm of the Front Pier and the Albert Quay Wall.

The works and all necessary conveniences connected therewith will be situate at and in the royal burgh and parish of Rothsay and in the bay of Rothsay adjoining thereto all in the county of Bute.

Power to deviate.

6. In constructing the works the Trustees may with the consent in writing of the Board of Trade deviate laterally to any extent within the limits of deviation marked on the deposited plans and may with the like consent deviate vertically to any extent.

Removal of dredged material.

7. No sand mud stone or other material dredged up or removed within the limits of the harbour shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been previously obtained.

Improvement and maintenance of piers and works.

8. Subject to the provisions of this Order the Trustees may maintain and improve the existing piers quays and other works connected therewith and the works and in connection therewith may from time to time construct erect maintain alter and improve all

necessary embankments walls locks docks gates sluices
piers quays wharves jetties landing places railways
tramways cattle pens houses warehouses offices sheds
refreshment or other buildings and rooms roads
approaches coal tips staiths bridges weighing machines
cranes moorings buoys lights water pipes and other
works and conveniences Provided that no line of rails
or tramway constructed under the powers of this Order
shall be used for the public conveyance of passengers
unless and until the Minister is satisfied that such line
is fit for that use :

Provided also that any electrical works constructed or erected under this section shall be so constructed erected maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

9. Any person who wilfully obstructs any person acting under the authority of the Trustees in setting out the lines of the works by this Order authorised or who pulls up or removes any posts poles or stakes fixed into the ground or in the water for the purpose of setting out the lines and levels of the said works or defaces or destroys the said works or any part thereof shall for every such offence be liable to a penalty not exceeding five pounds.

10. The Trustees shall within the limits of the Local harbour be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

11.—(1) The Trustees shall at or near such part of the works by this Order authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve.

(2) If the Trustees fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence

A.D. 1937. — to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent
lights on
works.

12.—(1) After the completion of the works by this Order authorised the Trustees shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Trustees fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Abatement
of work
abandoned
or decayed.

13.—(1) Where any work constructed by the Trustees under the powers of this Order and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Trustees at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

(2) If during the period of thirty days from the date when the notice is served upon the Trustees they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Trustees and the amount of such expense shall be a debt due from the Trustees to the Crown and shall be recoverable accordingly.

Works to
form part
of harbour.

14. The works authorised by this Order shall for all purposes including the levying and collecting of rates and dues be deemed to be part of the harbour undertaking of the Trustees.

Powers to
cease in

15. If the works by this Order authorised are not completed by the thirty-first day of December one

thousand nine hundred and forty-two then on the expiration of that period the powers by this Order granted to the Trustees for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

A.D. 1937.

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certain
events.

16. The Trustees shall not under the powers of this Order construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries under secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Trustees shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Trustees and the amount of such costs and charges shall be a debt due from the Trustees to the Crown and shall be recoverable accordingly.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

17. Meetings of the Trustees shall be held within the burgh at such times and at such places as may be fixed by them from time to time and they shall hold an annual general meeting upon the third Monday of October in each year. All Trustees shall be cited to attend all meetings such citation being given personally or at their dwelling-houses or places of business by notice issued by the clerk and posted or delivered at least twenty-four hours before the time of the meeting which notice shall be accompanied by a paper of agenda specifying so far as known to the clerk the business to be considered at the meeting.

Meetings of
Trustees.

18. The clerk shall issue without further authority the notices for all meetings appointed to be held by statute or by the standing orders of the Trustees. The clerk shall when required in writing by the chairman of

Special
meetings.

A.D. 1937. — the Trustees or on requisition being made to him stating in writing the object of the intended meeting and signed by not less than one-fifth of the whole members of the Trustees cause special meetings to be called the notices for which shall be issued within twenty-four hours and shall be held within four days after receipt of such requisition.

Special
urgency.

19. In any case which appears to the chairman to demand special urgency he may require the clerk to call and the clerk shall thereupon call a special meeting to be held at a time less than twenty-four hours from the issue of the notices provided that the resolutions of such meeting shall not be valid and binding on the Trustees unless either a majority of the whole Trustees is present or they are confirmed by a subsequent meeting called in manner provided by the section of this Order of which the marginal note is "Meetings of Trustees."

Quorum.

20. One-third of the Trustees shall constitute a quorum at any meeting thereof.

Adjourn-
ment.

21. The Trustees (whether more than or less than a quorum) present at any meeting of the Trustees or the clerk if no Trustee be present may adjourn such meeting to any other day hour and place.

Chairman
of meetings.

22. At all meetings the provost or senior magistrate of the burgh present at the time shall preside and shall have both a deliberative and in cases of equality a casting vote in all matters which shall come before the Trustees.

Omission
to send
notice not
to invalidate
proceed-
ings.

23. No act or proceeding of the Trustees shall be invalidated in consequence of the omission to send the notice of the meeting to any Trustee or of the informality of such notice and in any case the proceedings of any informally convened meeting shall be validated by confirmation at a subsequent meeting duly called.

Minute
books.

24. Minute books shall be kept by the clerk containing a record of the proceedings and orders of the Trustees Where not otherwise provided by local Act or standing order of the Trustees all minutes of meetings of the Trustees when prepared by the clerk shall be submitted to the next ensuing meeting and after being read and approved shall be signed by the chairman of the latter meeting.

25. The Trustees may from time to time enact such standing orders as they may consider necessary or expedient for the regulation of their business and repeal alter and amend the same The Trustees may by standing order provide for the closure of debate and for the suspension by resolution of the Trustees for the remainder of the sitting of any Trustee disregarding the authority of the chairman of any meeting or being guilty of obstructive or offensive conduct at any meeting.

A.D. 1937.

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Standing
orders.

26. The Trustees shall from time to time appoint a fit person to be clerk to the Trustees.

Appointment
of clerk to
Trustees.

27. The Trustees may sue and be sued in their corporate name and service on them of all legal processes and notices shall be effected by service on the clerk The title to all lands acquired by the Trustees shall be taken in their corporate name and all deeds contracts and writs of importance requiring to be executed by the Trustees shall be granted in their corporate name and shall be signed at a meeting of the Trustees by the chairman at that meeting and the clerk Provided that such signature shall not operate to make any person so signing personally liable for the repayment of any debt or the fulfilment of any obligation incurred by the Trustees.

Service of
writs
execution
of deeds and
form of title
to lands.

28.—(1) The Trustees in addition to the sums already borrowed by them may from time to time borrow on mortgage or otherwise—

Power to
borrow
money.

(a) for the purposes of this Order and of the works authorised by this Order and for the general purposes of their harbour undertaking any sum or sums of money not exceeding in the whole the sum of thirty-three thousand pounds;

(b) with the consent of the Secretary of State such further sum or sums as may from time to time be required for the purposes of the harbour or the harbour undertaking; and

(c) for paying the costs charges and expenses of and incident to the preparing for obtaining and passing of this Order the sum requisite for that purpose;

on the security of the rates dues and charges and the property revenue and undertaking of the Trustees;

A.D. 1937.

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52 & 53 Vict.
c. 50.

(2) The Secretary of State shall have and may exercise in relation to any such consent as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889 Provided that for the purpose of this subsection the sum of five guineas shall be substituted for the sum of three guineas in that section mentioned.

(3) Any money borrowed or raised under subsection (1) (a) of this section shall be repaid within thirty-five years from the date of borrowing the same and moneys borrowed under subsection (1) (b) of this section shall be repaid within such period and by such method as the Secretary of State may prescribe and moneys borrowed under subsection (1) (c) of this section shall be repaid within five years from the date of borrowing.

Power to
re-borrow.

29.—(1) The Trustees shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been obtained from the bank or other source on temporary loan and applied in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purpose of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Trustees shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Trustees shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or

(b) By means of a sinking fund; or

A.D. 1937.

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

30.—(1) In exercise of their borrowing powers under this Order other than borrowings for the payment of the costs of this Order the Trustees may grant bonds and mortgages containing an obligation for payment of the principal sums therein contained and interest thereon by fixed periodical instalments of such principal and interest to be therein specified whereby the said sums and all interest thereon shall be fully paid off at the expiration of the period over which such instalments shall extend which period shall not exceed in the whole thirty-five years but in the case of moneys borrowed under subsection (1) (b) of the section of this Order of which the marginal note is "Power to borrow money" shall not exceed the period prescribed by the Secretary of State. In the event of the Trustees so exercising their borrowing powers they shall in every year appropriate and set apart out of the revenues of the harbour such a sum as will provide for the payment of the said instalments of principal and interest.

Trustees may grant mortgages for payment of principal and interest by instalments.

(2) In the event of the Trustees borrowing money otherwise than by the method prescribed in subsection (1) of this section they shall repay such money either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the money is repayable by half-yearly instalments within six months from the date of borrowing.

31.—(1) If the Trustees determine to repay otherwise than by way of fixed periodical instalments of principal or of principal and interest combined any moneys borrowed under this Order a sinking fund shall be formed and maintained either—

Sinking fund.

(a) By payment to the fund throughout the fixed period of such equal annual sums as will be sufficient to pay off within that period the

A.D. 1937.
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moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

- (b) By payment to the fund throughout the fixed period of such equal annual sums as with accumulations at a rate not exceeding such rate as the Minister may approve will be sufficient to pay off within that period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the moneys for the repayment of which the sinking fund is formed be immediately invested in statutory securities but the Trustees may from time to time vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Trustees towards the equal annual payments to the fund.

(4) The Trustees may at any time apply the whole or any part of a sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund was formed:

Provided that in the case of an accumulating sinking fund the Trustees shall pay into the fund each year and accumulate during the residue of the fixed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If at any time the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Trustees.

(6) If at any time the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were

invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1937.
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(7) Any surplus of a sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such capital purposes as the Trustees with the consent of the Minister may determine.

(8) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Trustees in addition to the payments provided for by this Order.

32.—(1) If at any time it appears to the Trustees that the amount in a sinking fund together with the sums which will be payable thereto in accordance with the provisions of this Order and in the case of an accumulating sinking fund with the accumulations thereon will not be sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed the Trustees shall either temporarily or permanently make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Trustees shall increase the payments to such extent as the Minister may direct. Adjust-
ments to
sinking
fund.

(2) If the Trustees desire to accelerate the repayment of any moneys borrowed they may with the approval of the Minister increase the amounts payable to the sinking fund.

(3) If the amount in a sinking fund together with the sums which will be payable thereto in accordance with the provisions of this Order and also in the case of an accumulating sinking fund together with the accumulations thereon will in the opinion of the Minister be more than sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed the Trustees may reduce the payment to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1937.
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(4) If at any time the amount in a sinking fund together with the accumulations thereon in the case of an accumulating sinking fund will in the opinion of the Minister be sufficient to repay the moneys for the repayment of which the sinking fund is formed within the fixed period the Minister may authorise the Trustees to suspend the annual payments to the sinking fund until the Minister otherwise directs.

Return to
Minister.

33.—(1) The clerk shall within one month after being requested so to do by the Minister transmit to the Minister a return showing the provision made by the Trustees for the repayment of moneys borrowed by the Trustees under the authority of this Order.

(2) The return shall show such particulars shall be made up to such date and shall be in such form as the Minister may require shall be certified by the treasurer or other person whose duty it is to keep the accounts of the Trustees and shall if so required by the Minister be verified by a statutory declaration made by that person.

(3) If it appears to the Minister from any return made under this section or otherwise that the Trustees—

- (a) have failed to pay any instalment or annual payment required to be paid; or
- (b) have failed to appropriate to the discharge of any loan any sum required to be so appropriated; or
- (c) have failed to set apart any sum required for a sinking fund; or
- (d) have applied any portion of a sinking fund to a purpose other than those authorised;

the Minister may by order direct that such sum as is specified in the order not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date set out in the order and the clerk shall notify the Minister as soon as the order has been complied with.

(4) An order made under the last preceding subsection may be enforced at the instance of the Minister by a decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose.

(5) If a return required to be made under this section is not made the person in default shall be liable to a penalty not exceeding twenty pounds to be recovered by the Minister as a debt to the Crown is recoverable. A.D. 1937.
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34. All the provisions of the Harbour Act and Orders so far as the same remain in force and are applicable shall subject to the provisions of this Order extend and apply to the purposes of this Order and to the moneys to be borrowed under this Order. Application of Rothsay Harbour Act and Orders.

35. All money borrowed by the Trustees under the powers of this Order (other than money borrowed for the payment of the costs of this Order) shall be applied in the construction of the works authorised by this Order and for the other purposes of this Order and for the general purposes of the harbour to which capital is properly applicable. Application of money borrowed.

36. Any person lending or paying money to the Trustees under the provisions of the Harbour Act and Orders or any of them shall not be bound to inquire as to the observance by the Trustees of any provisions of the said Act and Orders or this Order or of any Act incorporated therewith or be bound or entitled to see to the application of such money or of any part thereof or be answerable for any loss or non-application of the same. Protection of lenders and others from inquiry.

37. All mortgages assignments or other securities on the dues rates and charges leviable by the Trustees and granted by the Trustees before and subsisting at the commencement of this Order shall during the continuance of such mortgages assignments or securities have priority over any mortgages assignments or securities granted by the Trustees after the commencement of this Order Provided that all securities hereafter granted by the Trustees for money borrowed or raised under the Harbour Act and Orders shall rank together *pari passu* without preference or priority the one over the other. Priority of existing mortgages.

38. In order to assist the Trustees to make due and regular payment of the interest on moneys borrowed or to be borrowed by the Trustees in virtue of the powers conferred by the Harbour Act and Orders and the sum annually payable to the sinking fund and the instalments of principal and interest for the repayment of the Corporation may guarantee instalments &c. on security of guarantee rate.

A.D. 1937. — moneys so borrowed as aforesaid it shall be lawful subject to the provisions of this Order for the corporation and they are hereby authorised to guarantee subject to such terms and conditions and for such period as they think fit the said interest and annual payments and instalments on the security of the guarantee rate by this Order authorised to be levied by the corporation.

Payment by corporation under the guarantee to be made on requisition by the Trustees.

39.—(1) If in any year there shall be a deficiency in the revenues of the harbour (after providing for the necessary expenses of working management and maintenance) to meet the charge for interest and the instalments of principal annually payable to the sinking fund or otherwise and for the redemption of moneys borrowed as aforesaid (all such interest being calculated at a rate not exceeding four per centum per annum and such instalments being calculated at the minimum amounts paid or payable to the sinking fund or otherwise under the Harbour Act and Orders) the Trustees may (in the event of the corporation having granted the said guarantee authorised by this Order) by writing under the hand of the clerk require payment from the corporation of such a sum as may represent the amount of such deficiency which deficiency shall subject to the provisions of this Order be based upon the abstract of accounts of the Trustees (as audited and certified by the auditor appointed under the provisions of the Harbour Act and Orders) and shall be ascertained and certified by the said auditor. Provided that the said auditor shall not in ascertaining and certifying the said deficiency take into account (1) any interest paid or payable by the Trustees in excess of four per centum per annum and (2) any amounts paid or payable to the sinking fund in excess of the minimum amounts paid or payable to the sinking fund under the Harbour Act and Orders.

(2) The corporation shall within nine months after receipt of the requisition referred to in subsection (1) of this section pay to the Trustees the amount of such deficiency or an amount equivalent to that produced by the imposition of the harbour guarantee rate hereinafter authorised at the rate of fourpence in the pound whichever is the smaller and the Trustees shall (subject as hereinafter provided) apply the money so received from the corporation towards such deficiency.

40. Any sums paid by the corporation under or in virtue of the provisions of this Order in respect of the said guarantee shall with the accumulated interest thereon at the rate of four pounds per centum per annum be a debt owing to the corporation by the Trustees and shall be a charge upon and be paid to the corporation out of the surplus revenues (if any) of the harbour in subsequent years to that in which the said payment or payments shall have been made.

A.D. 1937.
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 Payments by corporation to be a debt owing by Trustees.

41.—(1) For the purposes of and in security of the guarantee given by the corporation under the authority of this Order it shall be lawful for the corporation from time to time to fix impose and levy an assessment to be termed “the harbour guarantee rate” in order to pay the amount of the deficiency or the alternative amount in terms of the section of this Order the marginal note of which is “Payment by corporation under the guarantee to be made on requisition by the Trustees.”

Harbour guarantee rate.

(2) The said assessment so leviable shall be in addition to any other assessment levied by the corporation under statutory authority but shall not exceed fourpence in the pound of the rateable value of lands and heritages in the burgh.

42. The harbour guarantee rate shall be imposed levied and recovered by the corporation on and from the owners and occupiers of all lands and heritages within the burgh according to the valuation roll in equal proportions in the same manner as the general improvement rate authorised by the Burgh Police (Scotland) Acts 1892 to 1911 is imposed levied and recovered and all the provisions of those Acts (other than the limitation of rate) as read with the Rating (Scotland) Act 1926 and the Local Government (Scotland) Act 1929 with respect to the mode of imposing levying and recovering the general improvement rate shall mutatis mutandis extend and apply to the said assessment hereby authorised.

Assessment and levying of rate.
 16 & 17
 Geo. 5. c. 47.
 19 & 20
 Geo. 5. c. 25.

43.—(1) Whenever any vessel is stranded or sunk in the harbour or is laid by in the harbour or neglected as unfit for sea service the Trustees may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear the harbour therefrom.

Removal of stranded or sunk vessels.

(2) The Trustees may cause any such vessel and the furniture tackle and apparel thereof or any part thereof

A.D. 1937. — respectively which shall be raised or salvaged and also all or any part of the cargo goods chattels or effects which may be raised or salvaged from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto. Provided that the Trustees shall before selling any such cargo goods chattels or effects as aforesaid pay all duties charges or payments which may be payable to His Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties charges or payments so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Trustees for the aforesaid expenses and duties the Trustees may recover as a civil debt the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbiter to be payable in respect of the deficiency from the person who at the time of the sinking or stranding of the vessel was the registered owner thereof or from the executors or administrators of such owner.

(4) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbiter to determine and award whether any and (if so) what sum is payable in respect of the deficiency and the award of the arbiter appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award may be recovered in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

A.D. 1937.
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(5) The powers given to the Trustees under subsection (1) of this section shall not be exercised if the registered owner of the vessel stranded or sunk shall within twenty-four hours after the vessel shall have been stranded or sunk take such steps as may in the opinion of the harbour-master be necessary for the raising or removal thereof and shall thenceforth continuously and diligently and to the satisfaction of the harbour-master prosecute and do all such works and things as may in the opinion of the harbour-master be necessary and proper for the raising and removal of the vessel as speedily as possible.

(6) The powers conferred by this section on the Trustees shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

(7) Except for the purpose of removing any obstruction in the harbour nothing in this section shall entitle the Trustees to remove any wreck (as defined by section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wreck under the provisions of Part IX of the said Merchant Shipping Act and if the Trustees shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

(8) Nothing in this section shall prejudice affect or interfere with the rights powers jurisdictions and authorities statutory or otherwise vested in or exerciseable by the Clyde Pilotage Authority as constituted by the Clyde Pilotage Order 1920 confirmed by the Pilotage Orders Confirmation (No. 3) Act 1920 and in the event of the said authority in the exercise of any powers competent to them making any byelaws or regulations with respect to vessels stranded or sunk in the harbour the powers conferred on the Trustees by this section shall only be exercised subject to and in conformity with any such byelaws or regulations.

A.D. 1937.
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Byelaws.

44.—(1) In addition to the powers of making byelaws contained in the Harbours Clauses Act 1847 the Trustees may subject to the provisions of this Order make such byelaws as they shall think fit for all or any of the following purposes (that is to say):—

- (a) For the protection of the harbour and harbour undertaking and the buildings accommodations machinery and appliances connected therewith and for regulating the use thereof and the conduct of persons frequenting or using the same;
- (b) For the regulation and control of vessels and boats within the harbour limits and the fishermen and others frequenting resorting to or employed at the harbour within the harbour limits;
- (c) For the regulation of the embarking disembarking loading and unloading of any goods or traffic at the harbour or within the harbour limits.

(2) The byelaws may provide for imposing a penalty not exceeding five pounds for the breach or non-observance of any byelaw.

(3) No byelaws to be made by the Trustees under the Harbours Clauses Act 1847 or under this Order with reference to the harbour and harbour undertaking shall come into operation unless and until the same have been confirmed by the Minister and that confirmation shall be sufficient for all purposes. Provided that in the case of any byelaws which in the opinion of the Minister and the Board of Trade primarily concern the interests of navigation the provisions of this section shall apply as if the said Board were substituted for the Minister and the confirmation of any such byelaws by the Minister or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

(4) No byelaws made by the Trustees under the powers of this section shall conflict or be inconsistent with any byelaws or regulations made or authorised to be made by the Clyde Pilotage Authority as constituted by the Clyde Pilotage Order 1920 confirmed by the Pilotage Orders Confirmation (No. 3) Act 1920 and before making any byelaws under the powers

of this section the Trustees shall confer with the said authority with reference thereto and shall take into consideration any suggestions for amendment of such byelaws submitted by the said authority and in the event of the Trustees not agreeing to any such suggestions the said authority may appeal to the President of the Board of Trade who shall decide all questions in reference to such byelaws and his decision shall be final. A.D. 1937.
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45.—(1) On and after the commencement of this Order the Order of 1882 shall have effect as if the schedule hereto were substituted for Part V of the schedule to the Order of 1882 and the said Part V is hereby repealed. Alteration in dues and rates.

(2) After the commencement of this Order in the construction of Tables I and II of the schedule to the Order of 1882 the term "steamboat" therein used shall be deemed to include any vessel designed to be wholly or mainly mechanically self-propelled.

46.—(1) If it is represented by application in writing to the Minister— Revision of rates.

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Trustees;

that in the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order

A.D. 1937. — no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of the section of this Order of which the marginal note is "Inquiries by Minister" shall apply to such inquiry as if it were an inquiry held in pursuance of that section :

9 & 10
Geo. 5. c. 50.

10 & 11
Geo. 5. c. 21.

Provided that the person appointed to hold the inquiry shall be the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or if the said advisory committee cease to exist some persons with similar qualifications to be appointed for the purpose by the Minister.

(5) Nothing in this section contained shall prejudice or affect the provisions of section 15 (Limit of rates) of the Order of 1898.

(6) Section 13 (Rates to be revised) of the Order of 1882 is hereby repealed.

Inquiries by
Minister.

47.—(1) The Minister may cause to be held such local inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order.

(2) For the purpose of any such inquiry the person appointed to hold the inquiry may require any person to attend to give evidence or to produce any documents in his custody or under his control which relate to any matter in question at the inquiry and may take evidence on oath and for that purpose administer oaths or may instead of administering an oath require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined :

Provided that—

(a) no person shall be required to go more than ten miles from his place of residence unless

the necessary expenses of his attendance are paid or tendered to him; and A.D. 1937.

(b) nothing in this section shall empower the person holding the inquiry to require the production of the title or any instrument relating to the title of any land not being the property of the Trustees.

(3) Every person who refuses or wilfully neglects to attend when required to do so in pursuance of this section or to give evidence or who wilfully alters suppresses conceals destroys or refuses to produce any book or other document which he may be required to produce for the purposes of this section shall be liable to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding six months or to both such penalty and imprisonment.

(4) Where the Minister causes any such inquiry to be held the costs and expenses incurred by him in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as he may determine for the services of any officer engaged in the inquiry) shall be paid by the Trustees or party to the inquiry as the Minister may direct and he may certify the amount of the costs and expenses so incurred and any amount so certified and directed by the Minister to be paid by the Trustees or person shall be recoverable from the Trustees or person as a debt to the Crown.

(5) The Minister may make orders as to the costs and expenses of the parties to any such inquiry and as to the parties by whom such costs and expenses shall be paid.

48.—(1) The Trustees may grant to passengers and others pass tickets for the use of the existing pier and the other piers and works at such rates on such terms and for such periods not exceeding one year as may be agreed upon but so that no preference be given to any person. Pass tickets for use of piers.

(2) A pass ticket shall not be transferable nor be used by any person except the person to or for whom it is granted nor by any person after the period limited for its use.

(3) If any person acts in any way in contravention of this provision or uses or attempts to use any false

A.D. 1937.

or counterfeit pass ticket he shall for every such offence be liable to a penalty not exceeding twenty shillings which shall be payable to the Trustees and shall be applied to such purposes as the other pier revenues are applicable.

Dues on
seaplanes.

49. Subject to the provisions of the Air Navigation Acts 1920 and 1936 or of any order made in pursuance thereof the Trustees may demand levy collect and receive on and in respect of seaplanes entering or using the harbour such reasonable rates as may from time to time be approved by the Minister which rates shall be in lieu of the rates leviable by the Trustees under the Harbour Act and Orders on and in respect of vessels.

Power to
enter into
compo-
sitions.

50. The Trustees may from time to time confer vary or extinguish exemptions from and enter into compositions with any person or persons corporation or company with respect to the payment of any tolls rates and charges authorised to be taken by the Harbour Act and Orders but so that no preference be in any case given to any person and that anything done under this section shall not prejudice the other provisions of this Order.

Crown
rights.

51. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Recovery
and appli-
cation of
penalties.

52. Proceedings for any offence against this Order or for the recovery of any penalty under this Order or under any byelaw made in pursuance thereof may be brought in the police court.

Repeals.

53. Sections 11 12 13 16 17 39 42 to 84 (both inclusive) and section 86 of the local Act are hereby repealed as from the commencement of this Order.

[1 & 2 GEO. 6.] *Rothesay Harbour* [Ch. v.]
Order Confirmation Act, 1937.

54. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Trustees out of moneys which the Trustees are authorised to borrow for the purpose in terms of the section of this Order of which the marginal note is "Power to borrow money."

A.D. 1937.
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Costs of
Order.

The SCHEDULE referred to in the foregoing Order.
(Referred to in the section of this Order of which the marginal note is "Alteration in dues and rates.")

RATES ON PASSENGERS USING THE EXISTING PIER
OR OTHER PIERS OR LANDING PLACES.

For every person landing from or embarking in any vessel or using any of the piers or landing places for each and every time any sum not exceeding—

	<i>s.</i>	<i>d.</i>
In the case of persons over fourteen years of age	- 0	2
In the case of persons under fourteen years of age	- 0	1
Children in arms free.		

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